(d) for the use and benefit of otherwise qualified mentally incompetent or minor survivors.

(ii) Such payments will be made without a statement executed and signed by the person selected to receive the payment that the proceeds of the payment will be used for the exclusive benefit of the survivor. This statement will be supported by such additional evidence as the selecting officer may require. In such cases, the check covering the payment will name the payee as follows: "Richard Roe, for the use and benefit of (name of survivor)."

(6) *Payments to personal representatives.* No mustering-out payment will be made to the executor, administrator, or other person representing the veteran or any survivor, except as provided in subparagraph (4) of this paragraph.

§ 536.78 Payments to or on behalf of members discharged as mentally incompetent.

(a) *By whom made*—(1) *Finance and accounting officer.* The finance and accounting officer making final payment of pay and allowances will make mustering-out payments to or on behalf of those members discharged as mentally incompetent in accordance with paragraph (b) of this section.

(2) *Finance Center, U.S. Army.* Mustering-out payments on behalf of any member discharged as mentally incompetent who, in the opinion of the examining physician, is incapable of managing his own personal affairs and where no legal guardian or committee has been appointed, will be made only by the Finance Center, U.S. Army. Claims for such payment will be forwarded to the Settlements Operations, Finance Center, U.S. Army.

(b) *To whom payable*—(1) *To veteran.* Mustering-out payments due members discharged as mentally incompetent will be made to the veteran himself, provided that:

(i) A committee, guardian, or other legal representative has not been appointed in judicial proceedings.

(ii) Such appointment is not contemplated.

(iii) The statement of a physician (paragraph (c)(1) of this section) is furnished.

(2) *To other(s) on behalf of veteran.* Mustering-out payments on behalf of members discharged as mentally incompetent will be made only to the following:

(i) Legally appointed committee, guardian, or other legal representative of the veteran when he is not mentally competent to sign commercial papers.

(ii) Person or persons designated by the Finance Center, U.S. Army.

(c) *Evidence required before payment*—(1) *Physician's statement.* Where payment is to be made to the discharged veteran, a written, dated, and signed statement by a registered practicing physician will be required. It will be to the effect that the veteran is, in the physicians' opinion, mentally able to manage his own personal affairs. (The term "registered practicing physician" includes staff physicians at Government hospitals.)

(2) *Legal papers.* Where payment is to be made to the legally appointed committee, guardian, or other legal representative, a copy of the instrument of appointment certified as a true copy by the clerk of the issuing court will be required. Such papers will be attached to the payroll money list on which the first installment of mustering-out pay is reported. On subsequent payments reference will be made to the first installment roll by voucher number, date, and station symbol.

(d) *Payments to be made by check.* All mustering-out payments under this section will be made by check.

R. V. LEE,
Major General, U.S. Army,
The Adjutant General.

[F.R. Doc. 59-8536; Filed, Oct. 9, 1959; 8:45 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 2005]

[1577089]

FLORIDA

Revoking Executive Order No. 6883 of October 22, 1934

By virtue of the authority vested in the President by section 1 of the Act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 6883 of October 22, 1934, reserving the unappropriated and unreserved public lands within the boundaries of the proposed Everglades National Park, as indicated upon a diagram-annexed to and forming a part of the said order, for classification for the proposed Park, is hereby revoked.

Most of the lands affected by this order are within the Everglades National Park as now established. The remainder are State-owned or have been patented.

ROGER ERNST,
Assistant Secretary of the Interior.

OCTOBER 6, 1959.

[F.R. Doc. 59-8545; Filed, Oct. 9, 1959; 8:46 a.m.]

[Public Land Order 2006]

[Montana 031196]

MONTANA

Withdrawing Lands for Reclamation Purposes (Huntley Irrigation Project)

By virtue of the authority contained in section 3 of the Act of June 17, 1902 (32 Stat. 388; 43 U.S.C. 416), it is ordered as follows:

Subject to valid existing rights, the following-described public lands are hereby withdrawn in the first form from all forms of appropriation under the public land laws, and reserved under jurisdiction of the Bureau of Reclamation for use in connection with the Huntley Project:

MONTANA PRINCIPAL MERIDIAN

T. 3 N., R. 29 E.,
Sec. 27, NE¼NE¼ and S½NE¼.
T. 3 N., R. 30 E.,
Sec. 30, S½SE¼.

Aggregating 200 acres.

The lands were formerly part of the Crow Indian Reservation, the title of the Tribe having been extinguished pursuant to the Act of August 14, 1958 (72 Stat. 575), excepting title to the minerals which may be leased or otherwise disposed of under the laws and regulations relating to Indian Trust lands.

ROGER ERNST,
Assistant Secretary of the Interior.

OCTOBER 6, 1959.

[F.R. Doc. 59-8546; Filed, Oct. 9, 1959; 8:46 a.m.]

Title 46—SHIPPING

Chapter II—Federal Maritime Board, Maritime Administration, Department of Commerce

SUBCHAPTER G—EMERGENCY OPERATIONS

[General Order 82, Revised]

PART 309—VESSEL VALUES FOR WAR RISK INSURANCE

Part 309 is hereby revised by changing the part heading as set forth above and by changing the existing text to read as follows:

FINDINGS AND SCOPE

Sec.
309.1 Findings.
309.2 Scope.

BASIC VALUES

309.3 Vessels built during or after 1938.
309.4 Vessels built prior to 1938.

GENERAL PROVISIONS

309.5 Adjustments.
309.6 Definitions.
309.7 Modifications.
309.8 Vessel data forms.

AUTHORITY: §§ 309.1 to 309.8 issued under sec. 204, 49 Stat. 1987, as amended, sec. 1209, 64 Stat. 775, as amended, 46 U.S.C. 1114, 1289.

FINDINGS AND SCOPE

§ 309.1 Findings.

The Maritime Administrator has found that the values provided in this part constitute just compensation for the vessels to which they apply, computed in accordance with subsection 902 (a) of the Merchant Marine Act, 1936, as amended (46 U.S.C. 1242), pursuant to section 1209 (a), Merchant Marine Act, 1936, as amended (46 U.S.C. 1289 (a)), Public Law 958, 84th Congress, and the authority delegated to the Maritime Administrator by the Secretary of Commerce in section 6.01, subsection 2, paragraph (3) of Department Order No. 117 (Amended) (18 F.R. 5518, September 15, 1953).